

[expand all]

How do I contact the Statutory Fishing Rights Allocation Review Panel (SFRARP)?

Can SFRARP review my decision?

The Australian Government established SFRARP to review decisions by the Australian Fisheries Management Authority or a Joint Authority about the provisional allocation of statutory fishing rights made under a plan of management. SFRARP cannot review decisions to allocate statutory fishing rights made after an auction or tender process.

How do I apply to the SFRARP?

You may apply in writing to SFRARP for a review of a decision within 14 days after being notified by the Australian Fisheries Management Authority or by the Joint Authority of the decision. To apply, complete the [application form](#) and send it by email and [mail](#) the original to the SFRARP Registry.

What should be included in my application?

Your application must include details of the decision you want reviewed together with reasons for a review.

What will it cost me to lodge an application?

There are no fees for lodging an application. If you are summoned to appear before SFRARP as a witness you will be paid in accordance with the regulations.

If you want SFRARP to hear evidence from a witness who is not a party to the review, you will be required to pay the witness's fees and allowances.

What happens to my application after I have lodged it with the SFRARP?

Once SFRARP receives your application, SFRARP will notify the Australian Fisheries Management Authority, the Joint Authority, or anyone else affected by the decision (ie. other persons who have been granted the same types of statutory fishing rights under the same plan of management) as soon as possible and provide them a copy of your application.

The Australian Fisheries Management Authority or the Joint Authority is then required to provide SFRARP, within 14 days, reasons for the decision and any other documents relevant to the decision or fishery involved.

SFRARP will notify all parties involved of the time, date and place of any hearing.

The SFRARP will aim to hold hearings at the closest location to the majority of statutory fishing right holders in the relevant fishery.

Where can I get a copy of the Fisheries Management Act and related Regulations?

The following legislation is located on the [Federal Register of Legislation website](#).

ComLaw is the legislative repository developed by the Australian Government Attorney-General's Department and contains the following:

- [Fisheries Management Act 1991](#)
- [Fisheries Management Regulations 1992](#)
- The Federal Register of Legislative Instruments (FRLI) which was established on 1 January 2005 under the [Legislative Instruments Act 2003](#) as the authoritative source for legislative instruments and compilations of legislative instruments

Can I withdraw my application?

Yes, you can withdraw your application at any time by sending or delivering a written notice of withdrawal to the SFRARP, care of the [SFRARP Registry](#).

How will I know of the decision of the SFRARP regarding my application?

SFRARP will prepare a written statement setting out its decision and the reasons for it. SFRARP will provide each party to the proceeding, with a copy of the statement as soon as practicable after the decision is made.

Can I appeal the decision of the SFRARP?

Yes, you can appeal to the [Federal Court of Australia](#) on questions of law from the SFRARP's decision within 28 days of being notified of the decision.

How is membership of the SFRARP determined?

Membership of the Panel is determined by in accordance with Part 8 of the [Fisheries Management Act 1991](#).

Members are appointed by the Minister for Agriculture usually on a part-time basis for three consecutive terms not exceeding 12 years in total.

SFRARP currently consists of a Principal Member and five panel members.

If a member has a conflict of interest in relation to a review, the member must disclose the matters giving rise to that conflict, and must not take part in the review unless given consent by all parties.

An SFRARP panel member may resign from SFRARP by giving the Minister a signed notice of resignation.

The Minister may terminate the appointment of an SFRARP member for misbehaviour; physical or mental incapacity; inefficiency or incompetence; or bankruptcy.

Source: <https://www.agriculture.gov.au/agriculture-land/fisheries/sfrarp/faqs>